TATA TTR

PURCHASE ORDER

To, **NIHVA TECHNOLOGIES PVT. LTD**

SAMEER PLAZA 1ST FLOOR G-BLOCK
THERMAX CHOWK
PUNE-411019
Attn :
Tel No :020 66304033 Fax :
Email :sales@nivha.com

P.O. No. : **1801502900**
P.O. Date : **06.01.2017**
P.O. Validity End Date: **31.12.2017**
Vendor Code : **CN00176**
Amendment No :
Date :
Buyer Name :
Your Reference :

NOTE: As per standard terms and condition.

TERMS AND CONDITIONS

CURRENCY : **INR-Indian Rupee**
INCOTERM : **ZFR-Free on Road-TTR Hinjawadi**
PAYMENT : **P030-30 Days from GRR**

LNO	Item No.- Revision No. Item Description	UOM	QTY	RATE TAX DESCRIPTION	RATE	PER	TOTAL
00010	S1036080L090- Special Purpose Hand Pallet Lifter 2Ton	EA	1	Gross Price C - BED (%) C - VAT (%)	115,000.00 12.50 13.50	1	115,000.00 14,375.00 17,465.63

DRG/REV No./
Delivery Date **Qty.**
30.01.2017 1.000
Specification -

* Quotation Attached.

Total 146,840.63

TOTAL VALUE IN WORDS :
Rupee One Lakh Forty Six Thousand Eight Hundred Forty And Paise Sixty Three Only

DELIVER TO :
TATA TOYO RADIATOR LTD
Survey No.235/245, Village Hinjewadi
Taluka -Mulshi, Dist: Pune
PUNE-411027

ECC.NO : AAACT5566FXM001
RANGE : RANGE-III (THERGAON-II)
COMMISSIONERATE : PUNE-I

INCOME TAX NO : AAACT5566F
CST NO : 27210000075C WEF.1/4/2006
VAT TIN NO : 27210000075V WEF.1/4/2006

Header text
As per TTR specification attached.
Warranties
1 year
Delivery
3-4 weeks against inspection and clearance by TTR at your site.

Note:
STANDARD TERMS AND CONDITIONS.
For the Purchase of Products, parts and services.

PRECEDENCE: If there is conflict between these terms, the information of this Purchase Order ("PO AND OR CONTRACT"), or any attachments to the PO AND OR CONTRACT, the terms on the face of the PO AND OR CONTRACT shall take precedence over these terms, and these terms shall take precedence over any other attachment. If the contract is issued in conjunction with an executed services or supply agreement between the parties, the terms of the agreement will take precedence over all other terms.

1.As used in this document, the term "Contract" refers to the hardcopy for designating the Supplier, the Supplies and other terms of transactions plus these Terms and Conditions and any other terms that are attached or incorporated by reference.
"Purchaser" means TATA Autocomp Systems Limited and its Business Units (BUs) as may be indicated on the face of the RFQ and/or PO; "Supplier" means the Supplier or seller identified on the face of this RFQ and/or PO and its agents & representatives: "Specifications" means all applicable blueprints, product specifications, the provisions on the face of this RFQ and/or PO & any other attachments to it: "Supplies" means services, raw materials, components, intermediate assemblies, equipments and other supplies including indirect materials, technical data, drawings, or professional services to be furnished by Supplier to Purchaser for this RFQ and/or PO.
2.This Contract shall be construed as an offer to purchase the Supplies on the terms contained herein. The contract resulting from the acceptance of this Contract is to be construed according to the laws of India. This Contract is not assignable by Supplier in whole or in part. Any dispute shall be adjudicated in the courts of Pune, India only.
3.Unless expressly set forth below, Purchaser is not subject to a minimum term of supply or a minimum volume expressed in any quotation orany other document sent or previously exchanged between Purchaser & Supplier.
4.Contract is expressly limited to the terms & specifications contained herein. This RFQ and/or PO is our requirement to purchase thegoods & or services set forth herein & any preceding offer or quotation of Supplier for alternative or modified terms & specifications is (a) rejected & (b)expressly made conditional on Suppliers acceptance of the specification & terms hereof. Supplier accepts the specifications & terms

PREPARED BY	APPROVED BY	APPROVED BY	AUTHORISED BY
BUYER	MATERIALS HEAD	FINANCE HEAD	DGM MATLS / COO / CEO

TATA RD

PURCHASE ORDER

To, **NIHVA TECHNOLOGIES PVT. LTD**

SAMEER PLAZA 1ST FLOOR G-BLOCK
THERMAX CHOWK
PUNE-411019

Attn :

Tel No :020 66304033 Fax :

Email :sales@nivha.com

P.O. No.	: **1801502900**
P.O. Date	: **06.01.2017**
P.O. Validity End Date	: **31.12.2017**
Vendor Code	: **CN00176**
Amendment No	:
Date	:
Buyer Name	:
Your Reference	:

by acknowledging or confirming this order, or commencing work on or shipping supplies covered by this RFQ and/or PO.
5.Tax Invoice should be sent to Purchaser, in duplicate, giving Order no., correct description of goods & services supplied, mode of transport, packing slip no. & date of dispatch. If the Supplier charges VAT, CENVAT, he shall submit correct tax invoice as per the latest State& Central Govt. regulations for VAT & CENVAT. In case of imported goods , or materials, all the shipping documents should accompany invoice. Due to any incorrectness/deficiency in such invoice, if Purchaser suffers any loss or damages, the same shall be recovered from the Supplier by Purchaser. The registration No. of Purchaser under VAT, CST, ECC No. is _____.
6.The invoice for taxable services under service tax shall bear all the relevant details so as to enable Purchaser to avail Service Tax Credit in terms of Latest Service Tax Credit rules. Due to any incorrectness or deficiency in such invoice, if Purchaser suffers any loss or damages, the same shall be recovered from the Supplier by Purchaser. The Service Tax registration no. of Purchaser is _____.
7.In case parts are manufactured by Supplier and exported to Purchaser's customer, Supplier shall comply with all regulatory requirements for CENVAT and VAT exemptions. Necessary documentation (e.g., CT1, ARE1 etc) will be provided by Purchaser. Supplier shall be responsible for closing of required regulatory documents.
8.Original packing slip must accompany material. PO AND OR CONTRACT No., Department No., and receiving location Code must appear on all invoices, packing and packing slips.
9.Your invoices must be sent in duplicate on our Office Address. Invoice should clearly specify your delivery note no. & Date, our Division, Purchase Order No. & Date, Item Code and Description, Vendor Code, Sales Tax registration, Excise Control Code. Invoice not fulfilling these requirements will not be accepted. Separate invoice must be made for each delivery note.
10.Original Invoice should accompany the challan given along with the consignment.
11.Material should be correctly consigned for delivery at our Customers Works, as mentioned in the Purchase Order. If it is wrongly taken inside Municipal Corporation Limits, Octroi and all other expensesincurred by Purchaser will be debited to Suppliers account.
12.The goods shall be covered for transit Insurance by the Supplier & shall also arrange for Workmen compensation Insurance as per latest Workmens Compensation Act, as may be applicable. The Supplier shall alsocover the goods for Public Liability Insurance in Transit as may be applicable in terms of the latest public Liability Insurance Act and theRules made there under. In case of imported goods/materials shall be covered for Marine Insurance by the Supplier on value plus duty basis. In no event shall Purchaser be liable for any direct, indirect, consequential, economic or financial losses or incidental damages, , however caused and howsoever arising in any way out of this PO AND OR CONTRACT.
13.Payment terms are as per mentioned in the Contract.
14.Purchaser declines all responsibility of payment where proof of delivery made cannot be given satisfactorily.
15.Deliveries are to be made in quantities and at times specified on the PO AND OR CONTRACT face thereof or, if not specified, then as set forth on delivery schedules furnished by Purchaser. Delivery shall be made as mentioned on the face of PO AND OR CONTRACT. Time for delivery shall be of the essence of the Contract period. Purchaser has right to reject the parts in the event of parts being supplied in excess or short of the schedules provided to the Supplier. In case of any Premium Freight or line stoppages, suitable Penalty will be applicable.
16.In the event of delay in Toolings, PPAP and or parts, Purchaser can levy penalty for such delays, as per the Purchaser's agreement with end Customer.
17.Material should be sent as per terms of supply, which is part of PO.
18.Supplier shall, upon Purchaser request, suspend shipment and delivery of supplies to be furnished hereunder as Purchaser may request.
19.Supplier warrants that all supplies will conform to the Specifications and aesthetic requirement or samples furnished in connection with PO AND OR CONTRACT, and will be fit and sufficient for the purpose intended, merchantable, of good material and workmanship, free from defect. Supplier's warranties shall survive Purchaser & Purchaser customer's acceptance of, inspection of, and payment for the supplies. Where the supplied include services, the Supplier warrants that the services will be provided in a timely, diligent, efficient & skillful manner.
20.Supplier shall notify Purchaser immediately prior to the acceptance of PO AND OR CONTRACT if Supplier cannot satisfy the specifications, terms or the delivery schedule of the PO AND OR CONTRACT. The confirmation of the Purchase Order shall constitute the contract and shall be in writing within 7 days from the date of PurchaseOrder, failing which the Purchase Order acceptance will be assumed to have been given.
21.With respect to any supplies not in conformity with the requirements of PO AND OR CONTRACT, Purchaser shall have the right, at its option, to require the Supplier to repair, replace or re-perform such supplies or services immediately after notification or to reject such supplies. The rejected goods shall be taken back by the Supplier by making necessary transport arrangements within 7 days from the date of intimation, at the Supplier cost. Failing this, the cost incurred in the collection, disposal, sorting etc. of the rejected material will be debited to Supplier's account and deducted from Supplier's bills. Replacement material procurement cost incurred by Purchaser or
22.Any rejection at Purchaser / Purchaser's Customer plant shall be accepted by Supplier. PURCHASER at its sole discretion shall debit the cost of rejected parts to Supplier's account and shall be adjusted against the due bills.
23.Material must be inspected by Supplier at his end before Dispatch. The copy of the pre-Dispatch inspection report including dimensional and material related parameters must be sent along with each consignment and copy (hard / soft form) shall be sent to PURCHASER.
24.In case of any change in your sub-contractor, processes and location of manufacture, prior approval shall be taken from PURCHASER.
25.Supplier shall, at his expense, package and preserve the supplies in such a manner that they will arrive at the designated delivery addre ss free from damage and in such a condition as to permit reasonable handling and minimum six month storage under different environmental conditions without detrimental effects on the supplies. Purchaser's support / consultancy in the area of packaging cannot waive off the responsibility of the Supplier from such rejections if any.
26.PURCHASER may cancel PO AND OR CONTRACT or any part thereof at any time upon written notice to Supplier without liability.
27.Notwithstanding the foregoing, PURCHASER may cancel the PO AND OR CONTRACT without liability or cancellation charges in the event of any causes beyond its control , such as, but not limited to, flood, draught ,fire , war, riot, acts of terrorism , acts of God or acts or demands of any Governmental Authority.
28.PURCHASER may at any time, confirm in to Supplier to make changes in the Work to be performed or the items to be furnished hereunder in a ny one or more of the following (i) Specifications (ii) Method of shipment or packing (iii) time and or place of delivery & (iv)the quantity of items ordered. Supplier shall notify PURCHASER within 7 days of notification of such changes of any proposed differences in price, quality or delivery. Such proposed changes shall be subject to approval by PURCHASER.
29.Supplier warrants that the supplies specified herein (and their sale or use, alone or as a significant element of of a combination) will not infringe any United States , European or Foreign patents, copyrights, trade names, trade secrets or other intellectual property; and agrees to indemnify and hold harmless PURCHASER and anyone selling or using any of PURCHASER or PURCHASER Customers product against all judgments, decrees, costs, and expenses resulting from any alleged infringement, and agrees that Supplier shall, upon request of PURCHASER and at Suppliers own expense, defend or assist if the defense of any action which may be brought against PURCHASER or those selling or using any of PURCHASER products by reason of any such alleged infringements.
30.Any inventions, discoveries, patents, copyrights, trade names, trade secrets, mask works or other intellectual property created in the performance of the PO AND OR CONTRACT shall be the sole property of PURCHASER and Supplier shall do all things requested by PURCHASER to transfer the ownership thereof and to protect the same.
31.It is understood that any article made according to the design specified by PURCHASER or Purchaser's Customers will not be furnished bySupplier to any other person, firm or Corporation. It is recognized that Supplier will have access to certain Confidential information of PURCHASER or Purchaser's Customers and therefore Supplier agrees not to divulge to anyone the Confidential information of PURCHASER, nor use for its own benefit, any such information including drawings or other documentary information of a confidential nature.
32.If required, PURCHASER shall give the Supplier necessary drawings for manufacture of the parts to be supplied under the PO AND OR CONTRA CT. The Supplier shall use these drawings only for reference purpose, checking measurements or dimensions of the product. The Supplier should note that the drawings should not be used for any other purpose or copied for any reason. The design for manufacturing the product and the process thereof shall be the sole responsibility of the Supplier.
33.If required PURCHASER shall either supply the Tools, Patterns or Jigs or fixtures required for production of the parts to be supplied under this PO AND OR CONTRACT or pay for the manufacturing of such Tools, Patterns or Jigs or fixtures. Such Tools, Patterns or Jigs or fixtures supplied or paid by PURCHASER, will always remain the property of PURCHASER and the Supplier should use the same exclusively for PURCHASER parts and maintain the same at Suppliers cost and will return the same to PURCHASER after completing the supply or as instructed by PURCHASER.
34.The remedies herein reserved shall be cumulative and in addition to any other or further remedies provided in law or equity. No waiver of a breach of any provision of the PO AND OR CONTRACT shall constitute a waiver of any other breach, or of such provision on the future occasion.
35.Supplier shall not use or permit the use of the word TATA Autocomp Systems Limited or PURCHASER or any similar word or any trade mark of PURCHASER or TATA group in description of or in the marketing of the products produced by Supplier, or in any manner advertises or publish the fact that Supplier has contracted to furnish supplies pursuant to the PO AND OR CONTRACT or any PO AND OR CONTRACT with PURCHASER.
36.If Supplier ceases to conduct the operations in the normal courseof business or becomes unable to meet its obligations as they mature, if any bankruptcy or insolvency proceeding is brought by or against Supplier, if a receiver, administrative receiver, liquidator or similar is opted or applied for, if Supplier makes an assignment for thebenefit of Creditors, or if PURCHASER reasonably believes Supplier may be unableto complete the PO AND OR CONTRACT, PURCHASER may demand adequate written assurance of performance or, at its option, terminate this PO AND OR CONTRACT, in whole or in part , without liability except for supplies previously delivered to and accepted by PURCHASER. If Supplier fails to provide adequate written assurance of performance, PURCHASER may terminate this agreement or and PO AND OR CONTRACT.
37.The Supplier agrees to comply with all applicable Central, State and or Local Laws, Rules and regulations applicable in India from time to time. The Supplier further agrees to indemnify, defend and hold PURCHASER harmless from and against any liability arising from breach of the same and agrees to defend at its expense any action brought against PURCHASER.
38.Force Majeure Clause Neither party shall be liable to the other for failure to perform its obligation under the PO AND OR CONTRACT when performance is prevented by Flood, drought, fire, war, riot, acts of terrorism, acts of God or Governments. During the Suppliers inability to supply the supplies, PURCHASER may at its option, procure such supplies from other Supplier but will revert to the PO AND OR CONTRACT once the element of Force Majeure has been overcome.
39.PURCHASER may set off any amounts due to Supplier under the PO AND OR CONTRACT against amounts owed by the Supplier to PURCHASER for any reason.
40.If requested by PURCHASER, Supplier agrees to give PURCHASER or its Authorized representative's access to all pertinent documents, data or other information relating to supplies and to view any facility or process relating to the supplies.
41.This PO AND OR CONTRACT is deemed closed upon receipt of the supplies or services described herein or one (1) Calendar year from the date placed, which ever occurs first, unless otherwise stipulated on theface of this Order. The foregoing not withstanding, those terms which by their nature are intended to survive the delivery of the supplies under the PO AND OR CONTRACT shall survive.
42.The materials or Services agreed to be sold or provided shall be delivered at PURCHASER or at such place as instructed by PURCHASER, in writing. The property and risk of the items agreed to be sold shall pass on to PURCHASER only when the said items are delivered to PURCHASER or Purchaser's Customer and the Supplier shall be solely responsible for any shortage/damage/loss to the said items till the same is delivered in good condition to PURCHASER / Purchasers Customer.
43.Attention of Supplier is drawn to TATA Code of Conduct (TCOC) which PURCHASER follows rigorously in its business practices. Supplier's compliance to the said Code of Conduct is mandatory and is an essential part of this PO AND OR CONTRACT. Non-compliance of the Code of Conduct or any part of the Code of Conduct will be entirely at Suppliers risk and responsibility and shall be a ground for immediate termination of the contract by PURCHASER. Supplier shall obtain copy of the TCOC from your principal contact in PURCHASE or same can be downloaded from {" http://www.tacogroup.com/aboutus/Code_of_conduct.htm"}.
44. The relationship of Purchaser and Supplier is that of independent parties, and neither party is an employee, agent, partner or joint venture of the other. Supplier shall be solely responsible and liable for any employment related taxes, insurance premiums or other employment benefits respecting Supplier's activity.
45.Nothing in this order shall be constructed to preclude Purchaser from independently developing, or acquiring from other third parties, any service identical or similar to the Supplies contemplated herein.
46.Non - Competing - The Supplier shall not approach for business, or make any agreements with, or accept any orders from customers of Purchaser, introduced to the Supplier by Purchaser in connection with the services, supply of part and/or product.

PREPARED BY	APPROVED BY	APPROVED BY	AUTHORISED BY
BUYER	MATERIALS HEAD	FINANCE HEAD	DGM MATLS / COO / CEO

13.01.2017

TATA

PURCHASE ORDER

To, **NIHVA TECHNOLOGIES PVT. LTD**

SAMEER PLAZA 1ST FLOOR G-BLOCK
THERMAX CHOWK
PUNE-411019
Attn :
Tel No :020 66304033 Fax :
Email :sales@nivha.com

P.O. No.	: **1801502900**
P.O. Date	: **06.01.2017**
P.O. Validity End Date	: **31.12.2017**
Vendor Code	: **CN00176**
Amendment No	:
Date	:
Buyer Name	:
Your Reference	:

E-mail:enquiry@tatatoyo.com Website:www.tacogroup.com

For any ethical concerns For Tata Code Of Conduct (TCOC) Pl contact.

CHIEF ETHICS OFFICER
whistle.blower@tacogroup.com

PREPARED BY	APPROVED BY	APPROVED BY	AUTHORISED BY
BUYER	MATERIALS HEAD	FINANCE HEAD	DGM MATLS / COO / CEO